



CHAPTER xxxv.

An Act to provide for the transfer to the Gas Light and Coke Company of the undertaking of the Brentford Gas Company to confer various powers upon the Gas Light and Coke Company and for other purposes. [30th June 1925.] A.D. 1925.

WHEREAS the Gas Light and Coke Company (hereinafter referred to as "the Gas Light Company") were originally incorporated by Royal Charter in the year one thousand eight hundred and twelve and were incorporated in perpetuity by the Act 59 George III. c. 20 (Local):

And whereas by the Gas Light and Coke Company's Act 1868 all the prior Acts of the Gas Light Company were repealed and the Gas Light Company were continued and the provisions of all such prior Acts were consolidated and amended:

And whereas the Gas Light Company are supplying gas in an area of supply which consists of a large part of the county of London and parts of the counties of Middlesex and Essex and adjoins the area of supply of the Brentford Gas Company (hereinafter referred to as "the Brentford Company") which comprises other parts of the said counties of London and Middlesex and parts of the counties of Surrey Hertford and Berks:

And whereas the Gas Light Company have agreed with the Brentford Company for the acquisition by the Gas Light Company of the undertaking of the Brentford

[Ch. xxxv.] *Gas Light and Coke* [15 & 16 GEO. 5.]
Company's Act, 1925.

A.D. 1925. Company upon the terms set forth in this Act and it
— is expedient that effect should be given to that agree-
ment as provided by this Act :

And whereas the Gas Light Company are the owners or reputed owners of certain lands in the metropolitan borough of Battersea which are intersected by a public road known as Nine Elms Lane and it is expedient that in order to enable them to use advantageously the said lands for the purposes of their undertaking they should be empowered to close and appropriate the site of part of the said lane and to construct a new street in lieu thereof :

And whereas the Gas Light Company use for the purposes of their undertaking certain lands in the city of Westminster of which the greater part belongs or is reputed to belong to them but a small portion is held by them on lease for a term expiring in the year one thousand nine hundred and sixty and it is expedient that the Gas Light Company should be empowered to acquire the reversionary estate or interest of the lessors of the said leasehold portion :

And whereas it is expedient that the Gas Light Company should be empowered to manufacture and store gas and to work up convert and deal with the residual products of the manufacture of gas upon the lands described in that behalf in this Act :

And whereas it is expedient that the Gas Light Company should be empowered to stop up certain footpaths traversing lands belonging or reputed to belong to them or vested by this Act in the Gas Light Company as part of the undertaking of the Brentford Company :

And whereas it is expedient that the other powers and provisions contained in this Act should be granted and made :

And whereas the objects aforesaid cannot be attained without the authority of Parliament :

And whereas a plan and section showing the line situation and levels of the new street authorised by this Act and plans showing the lands which the Gas Light Company may acquire or use compulsorily under the powers of this Act and a book of reference to the said plans containing the names of the owners or reputed

owners lessees or reputed lessees and of the occupiers of and describing such lands have been deposited with the clerks of the peace for the counties of London and Middlesex and are in this Act respectively referred to as the deposited plans section and book of reference : A.D. 1925.

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PART I.

PRELIMINARY.

1. This Act may be cited as the Gas Light and Coke Company's Act 1925. Short title.

2. This Act is divided into Parts as follows :—

Act divided
into Parts.

Part I.—Preliminary.

Part II.—Transfer of Brentford undertaking.

Part III.—Street works in Battersea.

Part IV.—Stopping up footpaths.

Part V.—Lands.

Part VI.—Conversion of ten per centum bonds.

Part VII.—Miscellaneous.

3. The following enactments so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act or of any other Act or any Order relating to the Gas Light Company are hereby incorporated with this Act namely :— Incorporation of Acts.

The Companies Clauses Consolidation Act 1845 ;

Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts ;

The Lands Clauses Acts.

4. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith shall have the same Interpretation.

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Company's Act, 1925.

A.D. 1925. respective meanings unless there be something in the
— subject or context repugnant to such construction
And—

“The Gas Light Company” means the Gas Light and Coke Company;

“The Brentford Company” means the Brentford Gas Company;

“The Gas Light district” means the limits of supply of the Gas Light Company as existing immediately before the date of transfer;

“The Brentford district” means the limits of supply of the Brentford Company as existing immediately before the date of transfer;

“The date of transfer” means the first day of January one thousand nine hundred and twenty-six;

“The Brentford undertaking” means subject to the provisions of this Act the business goodwill and undertaking of the Brentford Company subject to all duties obligations liabilities incumbrances contracts and engagements whatsoever in any way affecting the Brentford Company or their undertaking or any part thereof and subsisting immediately before the date of transfer and the said expression includes (inter alia) all rights of making distributing and supplying gas and all other the rights easements powers authorities and privileges whatsoever of the Brentford Company and all property assets and effects whatsoever and wheresoever and whether real or personal including cash balances reserve insurance and other funds investments and all other interests and rights in to and out of the property whether real or personal and obligations and things in action of or belonging to the Brentford Company upon or immediately before the date of transfer and all books accounts deeds writings and documents relating thereto except any agreements entered into or to be entered into between the Brentford Company and the Gas Light Company relating to the transfer to the Gas Light Company of the Brentford under-

taking and any letters and documents relative to the enforcing of any such agreements by the Brentford Company; A.D. 1925.

“Staff officer” means in relation to the Brentford Company any person (other than a director or solicitor or auditor of that company) named in the book of that company called “Appointments and emoluments of officers” as having been appointed to any office by resolution of the Brentford Company on or before the twenty-fifth day of July one thousand nine hundred and twenty-four or (with the consent of the Gas Light Company) since that date and who holds that office immediately before the date of transfer;

“Limits of supply” means in relation to the Gas Light Company the area within which that Company are for the time being authorised to supply gas;

“The new street” means the new street in the metropolitan borough of Battersea by this Act authorised;

“The Battersea Council” means the council of the said metropolitan borough of Battersea.

PART II,

TRANSFER OF BRENTFORD UNDERTAKING.

5.—(1) On and from the date of transfer the Brentford undertaking shall by virtue of this Act be transferred to and vested in the Gas Light Company upon and subject to the terms and conditions contained in this Act and from and after such transfer and vesting the area within which the Gas Light Company are authorised to supply gas shall be the area consisting of the Gas Light district and the Brentford district.

Transfer to Gas Light Company of Brentford undertaking and dissolution of Brentford Company.

(2) On and from the date of transfer the Brentford undertaking shall form part of the undertaking of the Gas Light Company and subject to the provisions of the section of this Act of which the marginal note is “Brentford Company to continue incorporated for specified purpose” the Brentford Company shall be and are hereby dissolved.

A.D. 1925.

—
Brentford
Company to
continue in-
corporated
for specified
purpose.

6. Notwithstanding anything contained in this Act the Brentford Company shall for the purpose of enforcing the provisions of any agreement entered into between that company and the Gas Light Company before the date of transfer and for that purpose only continue incorporated until the expiration of three months from the date of transfer or for such longer period as may be necessary for the purposes of any proceedings for enforcing any such agreement which may be pending at the expiration of the said period of three months but on and from the expiration of the last-mentioned period or of such longer period as aforesaid the Brentford Company shall be and are hereby finally dissolved :

Provided that nothing in this section shall postpone or interfere with the transfer to and vesting in the Gas Light Company of the Brentford undertaking as provided by the section of this Act of which the marginal note is "Transfer to Gas Light Company of Brentford undertaking and dissolution of Brentford Company" or postpone or affect the operation of any other provisions of this Act.

Considera-
tion to
holders of
ordinary
and prefer-
ence stocks
of Brentford
Company.

7. As soon as reasonably practicable after the date of transfer the Gas Light Company shall subject to and in accordance with the provisions of this Act issue to those persons who immediately before that date held "A" ordinary stock or "B" ordinary stock or five per centum preference stock of the Brentford Company ordinary stock or four per centum consolidated preference stock of the Gas Light Company as follows (that is to say) :—

To each holder of "A" ordinary stock or of "B" ordinary stock of the Brentford Company for every one hundred pounds of such stock held by him the sum of one hundred and twenty pounds ordinary stock of the Gas Light Company to be created as hereinafter provided; and

To each holder of five per centum preference stock of the Brentford Company for every one hundred pounds of such stock held by him the sum of one hundred and twenty-five pounds four per centum consolidated preference stock of the Gas Light Company to be created as hereinafter provided;

and so in proportion for any amount of any such stock of the Brentford Company less than one hundred pounds. A.D. 1925. —

8. As soon as reasonably practicable after the date of transfer the Gas Light Company shall subject to and in accordance with the provisions of this Act issue to those persons who immediately before that date held debenture stock of the Brentford Company debenture stock of the Gas Light Company as follows (that is to say):—

Gas Light Company to issue debenture stock in substitution for debenture stocks of Brentford Company.

To each holder of four per centum debenture stock of the Brentford Company for every one hundred pounds of such debenture stock held by him the sum of one hundred and thirty-three pounds six shillings and eightpence three per centum consolidated debenture stock of the Gas Light Company to be created as hereinafter provided; and

To each holder of six per centum redeemable debenture stock of the Brentford Company for every one hundred pounds of such debenture stock held by him the sum of one hundred pounds six per centum redeemable debenture stock of the Gas Light Company to be created as hereinafter provided;

and so in proportion for any amount of any such debenture stock of the Brentford Company less than one hundred pounds.

9.—(1) The mortgage bonds of the Brentford Company outstanding at the date of transfer shall as from that date become and be mortgage bonds of the Gas Light Company charged upon the undertaking of the Gas Light Company in all respects as if those bonds had been issued by the Gas Light Company and as if that Company had been named therein instead of the Brentford Company.

As to mortgage bonds of Brentford Company.

(2) The interest on the said bonds shall as from the date of transfer rank *pari passu* with the interest on the three per centum consolidated debenture stock of the Gas Light Company.

10.—(1) As on the date of transfer there shall be created by virtue of this Act and without any other requisite such nominal amounts of ordinary stock and

Creation of ordinary and preference stock

A.D. 1925.
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 and debenture stock of Gas Light Company for purposes of transfer.

four per centum consolidated preference stock and three per centum consolidated debenture stock and six per centum redeemable debenture stock respectively of the Gas Light Company as shall be necessary to give effect to the provisions of this Act with respect to the transfer of the Brentford undertaking.

(2) The amounts of ordinary stock and preference stock and debenture stock of the Gas Light Company to which the holders of ordinary or preference stock or debenture stock of the Brentford Company respectively become by virtue of this Act entitled shall be vested in such holders as on and from the date of transfer and such holders shall subject to the provisions of the section of this Act of which the marginal note is "As
 " to fractional parts of five pounds of stock to be issued
 " to holders of stock of Brentford Company " be forthwith registered in the books of the Gas Light Company as the holders of such amounts respectively.

(3) Subject to the provisions of this Act the ordinary stock and preference stock and debenture stock of the Gas Light Company created as aforesaid shall rank for dividend or interest as from the thirty-first day of December one thousand nine hundred and twenty-five and as from that date the ordinary stock and preference stock and debenture stock of the Brentford Company shall cease to bear any dividend or interest.

Ordinary and preference stock and three per centum debenture stock of Gas Light Company created under Act to form part of existing stocks.

11. The ordinary stock and four per centum consolidated preference stock and the three per centum consolidated debenture stock of the Gas Light Company created by virtue of the section of this Act of which the marginal note is "Creation of ordinary and preference
 " stock and debenture stock of Gas Light Company
 " for purposes of transfer " shall in all respects and for all purposes be deemed to form part of and be consolidated with the ordinary stock or the four per centum consolidated preference stock or the three per centum consolidated debenture stock (as the case may be) of the Gas Light Company existing at the date of the passing of this Act and such first-mentioned ordinary stock and preference stock and debenture stock and the interest on that debenture stock shall respectively rank *pari passu* with the said existing ordinary stock and preference stock and debenture stock and the interest on that debenture stock.

12.—(1) The six per centum redeemable debenture stock of the Gas Light Company created by virtue of this Act shall be charged upon the undertaking of that Company and shall be known as “six per centum Brentford redeemable debenture stock” and the interest thereon shall rank *pari passu* with the interest on the three per centum consolidated debenture stock of the Gas Light Company. A.D. 1925.
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As to re-
deemable
debenture
stock
created
under Act.

(2) The six per centum Brentford redeemable debenture stock shall be transferable in amounts of five pounds or any multiple of five pounds and not otherwise.

(3) The six per centum Brentford redeemable debenture stock shall be redeemable by the Gas Light Company on the first day of January or the first day of July in any year on six months' notice in writing addressed to each registered holder thereof by the payment in cash to each holder of such debenture stock of a sum calculated at the rate of one hundred and six pounds for each one hundred pounds of such debenture stock held by him in addition to the interest on such debenture stock accrued up to the day immediately preceding the date of redemption.

13.—(1) The Gas Light Company may provide any moneys required for the redemption of the mortgage bonds referred to in the section of this Act of which the marginal note is “As to mortgage bonds of Brentford Company” or of the six per centum Brentford redeemable debenture stock by raising such moneys by borrowing on mortgage of their undertaking or by the creation and issue of debentures or of redeemable debenture stock or of additional amounts of three per centum consolidated debenture stock or by the creation and issue of additional amounts of ordinary stock or four per centum consolidated preference stock or partly by any one or more of those modes and partly by any other or others of them. Raising of
money re-
quired for
redemption
of mortgage
bonds and
six per
centum
Brentford
redeemable
debenture
stock.

(2) If under the powers of this section the Gas Light Company create and issue any redeemable debenture stock they may if it is so provided in the resolution creating the same—

(a) call in and pay off the debenture stock or any part thereof at any time before the date fixed for redemption;

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(b) redeem the debenture stock or any part thereof either by paying off the same or by issuing to the holder thereof subject to his consent other debenture stock in substitution therefor and may for the purpose of providing money for paying off the debenture stock or providing substituted debenture stock create and issue new debenture stock (redeemable or irredeemable) or re-issue debenture stock originally created and issued as aforesaid.

(3) The interest on all mortgages granted or debentures or debenture stock (whether redeemable or irredeemable) created and issued by the Gas Light Company under the powers of this section shall rank *pari passu* with the interest on the three per centum consolidated debenture stock of the Gas Light Company existing at the date of such issue and all ordinary stock or preference stock created and issued by the Gas Light Company under the said powers shall in all respects and for all purposes be deemed to form part of and be consolidated with and rank *pari passu* with the ordinary stock or four per centum consolidated preference stock (as the case may be) of the Gas Light Company existing at the date of such issue.

As to fractional parts of five pounds of stock to be issued to holders of stock of Brentford Company.

14. In every case where under the foregoing provisions of this Part of this Act a holder of ordinary stock or five per centum preference stock or four per centum debenture stock or six per centum redeemable debenture stock of the Brentford Company would be entitled to be registered as the holder of any fractional part of five pounds of ordinary stock or four per centum consolidated preference stock or three per centum consolidated debenture stock or six per centum Brentford redeemable debenture stock of the Gas Light Company or of any amount of such ordinary stock or preference stock or debenture stock including any such fractional part as aforesaid the Gas Light Company in lieu of registering such holder and issuing to him a certificate as holder of such fractional part of five pounds of ordinary stock or preference stock or three per centum consolidated debenture stock or six per centum Brentford redeemable debenture stock or of an amount of ordinary stock or preference stock or three per centum consolidated debenture stock or six per centum Brentford redeemable debenture stock

including such fractional part shall pay to such holder such a sum in cash as shall be equal to the value of such fractional part at the mean market price on the date of transfer and shall register such holder and issue to him a certificate as holder of the amount (if any) of ordinary stock or preference stock or three per centum consolidated debenture stock or six per centum Brentford redeemable debenture stock of the Gas Light Company to which he shall be entitled as aforesaid excluding such fractional part and the receipt of such holder for the sum in cash so paid as aforesaid shall be a sufficient discharge to the Gas Light Company in respect of such fractional part. The Gas Light Company may either cancel all or any of the ordinary stock or preference stock or three per centum consolidated debenture stock or six per centum Brentford redeemable debenture stock in respect of which any such payment has been made or issue the same to any willing purchaser thereof in amounts of five pounds or multiples thereof but not otherwise and any loss or expense which may be incurred in connection with such issue shall be borne by the Gas Light Company.

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15. The creation by virtue of this Act of ordinary stock and four per centum consolidated preference stock and three per centum debenture stock and six per centum Brentford redeemable debenture stock of the Gas Light Company and the transfer to that Company of the obligations of the Brentford Company under the mortgage bonds referred to in the section of this Act of which the marginal note is "As to mortgage bonds of Brentford Company" shall not affect the powers of the Gas Light Company under their existing Acts and Orders of raising money by the creation and issue of ordinary or preference stock or of debenture stock but those powers shall (subject to the provisions of the section of this Act of which the marginal note is "As to unexercised powers of Brentford Company of raising capital and borrowing") continue to be exercisable by the Gas Light Company as if this Act had not been passed.

Stock &c. created by this Act not to affect Gas Light Company's powers of raising capital or issuing debenture stock.

16. The ordinary or preference stock or debenture stock of the Gas Light Company of which the holders of ordinary or preference stock or debenture stock of the Brentford Company are pursuant to the provisions of this Act respectively registered as the holders and the sums of cash to be paid by the Gas Light Company

Trustees to accept substituted stock and bonds.

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Company's Act, 1925.

A.D. 1925. under this Part of this Act in respect of the fractional parts of five pounds as aforesaid and the mortgage bonds referred to in the section of this Act of which the marginal note is "As to mortgage bonds of Brentford Company" shall be held in the same rights upon the same trusts and subject (so far as is consistent with such provisions) to the same powers provisions charges and liabilities as those in upon or to which the ordinary or preference stock or debenture stock of the Brentford Company for which such ordinary stock or preference stock or debenture stock of the Gas Light Company and sums of cash are respectively substituted or the mortgage bonds of the Brentford Company (as the case may be) were held or were subject immediately before the date of transfer and shall be dealt with applied and disposed of accordingly and so as to give effect to and not to revoke any deed will or other instrument disposing of or affecting any such ordinary or preference stock or debenture stock or mortgage bonds of the Brentford Company and not to adeem any gift of such stock or bonds made by any will or other testamentary instrument and trustees executors or administrators and all other holders in any representative or fiduciary capacity of any ordinary or preference stock or debenture stock or mortgage bonds of the Brentford Company are hereby expressly authorised and required to accept any ordinary stock or preference stock or debenture stock of the Gas Light Company of which they are pursuant to the provisions of this Part of this Act registered as the holders and any sums of cash paid to them under the provisions of this Part of this Act or the mortgage bonds of the Gas Light Company (as the case may be) and to hold dispose of or otherwise deal with such ordinary stock preference stock or debenture stock and sums of cash or mortgage bonds in all respects as they might have held disposed of or otherwise dealt with the ordinary or preference stock or debenture stock or mortgage bonds of the Brentford Company for which the same are substituted and are hereby excused from any liability in respect of all acts bonâ fide done by them in pursuance of the provisions of this Part of this Act.

Exchange of
certificates.

17. The Gas Light Company shall call in the certificates for ordinary or preference stock or debenture stock of the Brentford Company for which ordinary stock or

preference stock or debenture stock of the Gas Light Company and sums of cash (if any) are substituted under the provisions of this Part of this Act and shall issue free of charge in exchange for those certificates to the respective holders of the ordinary or preference stock or debenture stock of the Brentford Company represented thereby certificates for ordinary stock or preference stock or debenture stock (as the case may be) of the Gas Light Company of the respective amounts and pay to such holders the sums of cash (if any) to which those holders are by this Part of this Act respectively entitled but no holder of ordinary or preference stock or debenture stock of the Brentford Company shall be entitled to a new certificate or to receive any such sum of cash as aforesaid until he shall have delivered up to the Gas Light Company to be cancelled the existing certificate for which such certificate and sum of cash (if any) are to be substituted or shall have proved to the reasonable satisfaction of the directors of the Gas Light Company the loss or destruction of such certificate and shall have given to the Gas Light Company an indemnity against any and every claim in respect of such lost or destroyed certificate or the ordinary stock or preference stock or debenture stock represented thereby :

Provided that until the issue of such new certificates the holders of the existing certificates for ordinary or preference stock or debenture stock of the Brentford Company shall (according to the amounts of ordinary stock or preference stock or debenture stock of the Gas Light Company to be issued under the provisions of this Part of this Act in substitution or part substitution for the ordinary or preference stock or debenture stock of the Brentford Company which such existing certificates respectively represent) have and possess the same rights and privileges as if such existing certificates were certificates for those respective amounts of ordinary stock or preference stock or debenture stock of the Gas Light Company but if any such holder neglect or omit to send or deliver to the Gas Light Company his certificate or certificates for ordinary or preference stock or debenture stock of the Brentford Company for the period of one year after notice in writing sent by post to the address of such holder appearing in the books of the Brentford Company the Gas Light Company may suspend the payment of any dividends or interest declared or becoming

A.D. 1925. payable upon or in respect of the ordinary or preference stock or debenture stock so held by him until such certificate or certificates is or are delivered up to the Gas Light Company or is or are proved to the reasonable satisfaction of the directors of that Company to have been lost or destroyed and until such indemnity as aforesaid shall have been given.

Certificates
&c. to re-
main in
force.

18. All transfers or other dispositions of any ordinary or preference stock or four per centum debenture stock or six per centum redeemable debenture stock or mortgage bonds of the Brentford Company made but not registered prior to the date of transfer shall notwithstanding the provisions of this Act be valid and have due effect given to them respectively as transfers or dispositions of (as the case may be)—

(a) The amounts (being in each case a multiple of five pounds) of ordinary stock or four per centum consolidated preference stock or three per centum consolidated debenture stock or six per centum Brentford redeemable debenture stock of the Gas Light Company which represent the ordinary or preference stock or debenture stock of the Brentford Company thereby expressed to be transferred or disposed of and which are substituted for the same by this Act; or

(b)—(i) Ordinary stock or four per centum consolidated preference stock or three per centum consolidated debenture stock or six per centum Brentford redeemable debenture stock of the Gas Light Company to the amount of the multiple of five pounds next below the amount of the ordinary or preference stock or debenture stock of that Company which but for the provisions of the section of this Act of which the marginal note is “As to fractional parts of five pounds of stock to be issued to holders of stock of Brentford Company” would have represented the ordinary stock or preference stock or debenture stock of the Brentford Company transferred or disposed of by such transfer or disposition as aforesaid; and

(ii) A sum in cash equal to the value of any fractional part of five pounds of such ordinary stock or preference stock or debenture stock

of the Gas Light Company at the mean market price on the date of transfer; or A.D. 1925.

- (c) Mortgage bonds of the Gas Light Company to the same amount as the mortgage bonds of the Brentford Company thereby expressed to be transferred or disposed of

although the instrument of transfer or disposition shall describe the same as ordinary stock or preference stock or four per centum debenture stock or six per centum redeemable debenture stock or mortgage bonds of the Brentford Company and the Gas Light Company shall accordingly register the ordinary stock or preference stock or debenture stock or mortgage bonds in the name of the transferee or person taking under the disposition and pay to such transferee or person the sum (if any) payable in cash and any bequest of or any covenant in or provision of any deed or instrument which but for the passing of this Act would apply to the ordinary stock or preference stock or debenture stock or mortgage bonds of the Brentford Company so transferred or disposed of as aforesaid shall be held to apply to—

- (a) An amount of ordinary stock or preference stock or debenture stock of the Gas Light Company (as the case may be) equal to that which is under the provisions of this Part of this Act substituted for such ordinary stock or preference stock or debenture stock of the Brentford Company together with any sum of cash payable under the provisions of this Part of this Act in respect of any fractional part of five pounds of ordinary stock or preference stock or debenture stock of the Gas Light Company; or
- (b) Mortgage bonds of the Gas Light Company to the same amount as the mortgage bonds of the Brentford Company.

19. For the purposes of the sections of this Act of which the marginal notes are respectively “As to fractional parts of five pounds of stock to be issued to holders of stock of Brentford Company” and “Certificates &c. to remain in force” the mean market price of the six per centum Brentford redeemable debenture stock on the date of transfer shall be deemed to be one hundred and six pounds for every one hundred pounds of that stock and so in proportion for any greater or less amount.

As to mean market price of six per centum Brentford redeemable debenture stock.

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Separate
accounts of
Brentford
Company to
be audited for
year to 31st
December
1925.

Provisions
of Gas Light
Company's
Acts and
Orders to
apply to
limits as
extended.

20. Separate accounts of the Brentford Company shall be made out for the year ending on the thirty-first day of December one thousand nine hundred and twenty-five and be audited by the auditors of that company in the same manner as they would have been audited if this Act had not been passed.

21. Subject to the provisions of this Act all public and private Acts and all Orders confirmed by or having the force of an Act of Parliament relating to or affecting the Gas Light Company or their undertaking immediately before the date of transfer shall (except so far as such Acts and Orders are repealed or amended) apply to the undertaking of the Gas Light Company as existing immediately after the date of transfer and as from that date the Gas Light Company within the Gas Light district and within the Brentford district may exercise all or any of the powers rights privileges and authorities and shall be subject to all the duties obligations and liabilities conferred or imposed by the said Acts and Orders in relation to the Gas Light district or any part thereof :

Provided that nothing in this section shall be construed as extending or enlarging the scope of any of the provisions of the said Acts and Orders which only apply to or affect a specified portion of the undertaking or area of supply of the Gas Light Company or are otherwise specifically of limited application.

Repeal of
certain
enactments
of Brentford
Company
and transfer
to Gas Light
Company of
unrepealed
enactments.

22.—(1) The Acts and Orders named in the first column of the First Schedule to this Act shall as from the date of transfer be and the same are hereby repealed to the extent mentioned in the second column of that schedule except so far as it may be necessary for the said Acts and Orders or any of them or any of the provisions thereof respectively to remain unrepealed for the purposes of the section of this Act of which the marginal note is "Brentford Company to continue incorporated for specified purpose."

(2) The provisions of the said Acts and Orders which are not repealed by this section shall continue in force within the Brentford district and the Gas Light Company within that district may exercise the powers conferred and shall be subject to the obligations imposed by the said provisions in all respects as if the Gas Light Company had been therein referred to instead of the Brentford

Company but nothing in the said provisions shall be construed as conferring upon the Gas Light Company any power of purchasing residual products obtained in the manufacture of gas or matters producible therefrom not otherwise possessed by the Gas Light Company : A.D. 1925.

Provided that notwithstanding anything in the said provisions with respect to the limits within which the Brentford Company may supply gas manufactured by them the Gas Light Company shall be entitled to supply in any part of the limits of supply any gas manufactured by them under or by virtue of the powers conferred by the said provisions :

Provided also that if there shall be any inconsistency between any of the enactments referred to in this subsection and any enactment applying to the Gas Light Company or their undertaking otherwise than by virtue of this section such last-mentioned enactment shall prevail.

- 23.**—(1) As from the date of the passing of this Act—
- (a) all resolutions passed by the Brentford Company before that date creating or authorising the creation and issue of ordinary or preference stock or debenture stock of which the whole or part shall not have been issued before the said date are hereby annulled so far as they relate to such unissued ordinary or preference stock or debenture stock ; and
- (b) all powers of the Brentford Company of raising money by the creation and issue of additional capital or by borrowing on mortgage or by the creation and issue of debenture stock (including any powers transferred to that company in connection with the transfer to them of the undertaking of any other company) which shall remain unexercised at the said date shall cease to be exerciseable by that company.

As to unexercised powers of Brentford Company of raising capital and borrowing.

(2) As from the date of transfer the said unexercised powers of the Brentford Company shall notwithstanding the repeal by this Act of the enactments conferring those powers be exerciseable by the Gas Light Company (a) by the creation and issue of ordinary stock or preference stock for the purpose of raising any money which if this

A.D. 1925. — Act had not been passed the Brentford Company could have raised by either of those modes or (b) by borrowing on mortgage or by the creation and issue of debenture stock (redeemable or irredeemable) or debentures for the purpose of raising any money which if this Act had not been passed the Brentford Company could have raised by any of those modes. Provided that the Gas Light Company may if they think fit in lieu of raising any such money as is referred to under the foregoing head (a) by the creation and issue of ordinary stock or preference stock raise the same by borrowing on mortgage or by the creation and issue of debenture stock (redeemable or irredeemable) or debentures.

(3) All ordinary stock and preference stock and irredeemable debenture stock created and issued by the Gas Light Company under the powers of this section shall in all respects and for all purposes be deemed to form part of and be consolidated with the ordinary stock or four per centum consolidated preference stock or three per centum consolidated debenture stock (as the case may be) of the Gas Light Company existing at the date or respective dates of such creation and issue and such first-mentioned ordinary stock and preference stock and debenture stock and the interest on that debenture stock shall respectively rank *pari passu* with the said existing ordinary stock and preference stock and debenture stock and the interest on that debenture stock.

(4) If under the powers of this section the Gas Light Company create and issue any redeemable debenture stock the interest thereon shall rank *pari passu* with the interest on the three per centum consolidated debenture stock of the Gas Light Company existing at the date of such issue and the provisions of subsection (2) of the section of this Act of which the marginal note is "Raising of money required for redemption of mortgage bonds and six per centum Brentford redeemable debenture stock" shall apply with reference to the debenture stock so issued.

Pending
actions not
to abate.

24. If at the date of transfer any action arbitration or proceeding or any cause of action arbitration or proceeding shall be pending or existing by or against or in favour of the Brentford Company the same shall not abate or be discontinued or be in anywise prejudicially

affected by reason of the transfer to the Gas Light Company of the Brentford undertaking or of anything in this Act but the same may be continued prosecuted and enforced by against or in favour of the Gas Light Company as and when it might have been continued prosecuted and enforced by against or in favour of the Brentford Company if this Act had not been passed but not further or otherwise. A.D. 1925.

25. All contracts agreements conveyances deeds leases licences and other instruments affecting the Brentford Company and in force at the date of transfer shall (subject as hereinafter provided) as from that date be as binding and of as full force and effect against or in favour of the Gas Light Company and may be enforced against or by the Gas Light Company as fully and effectually as if instead of the Brentford Company the Gas Light Company had been a party thereto or bound thereby or entitled to the benefit thereof and the Gas Light Company shall as from the said date indemnify the Brentford Company and their directors from and against all actions claims demands losses damages costs and expenses whatsoever in respect thereof: Contracts to be binding

Provided that no contract agreement conveyance deed lease or other instrument made or entered into by the Brentford Company after the twenty-fifth day of July one thousand nine hundred and twenty-four and extending beyond the first day of January one thousand nine hundred and twenty-six shall be binding on or of any force or effect against or in favour of the Gas Light Company if made or entered into without the consent in writing of that Company.

26. All rents rates and charges and other sums and debts at the date of transfer due and payable or accruing due and payable to the Brentford Company shall be payable to and may be collected recovered and enforced by the Gas Light Company in the same manner and with and by the same benefits and processes as those with and by which the Brentford Company might have enforced the same and shall belong to the Gas Light Company for their own benefit. Collection of outstanding debts.

27. All books and documents which if this Act had not been passed would have been evidence in respect of any matter for or against the Brentford Company Books &c. to remain evidence.

A.D. 1925. shall be admitted in evidence in respect of the same or
 — the like matter for or against the Gas Light Company.

Officers of
 Brentford
 Company to
 be account-
 able for
 books &c.

28. All officers and persons who at the date of transfer have in their possession or under their control any books documents papers moneys or effects forming part of the Brentford undertaking (other than the duplicate of any agreement between the Brentford Company and the Gas Light Company for or relating to the sale of the Brentford undertaking) or to which the Brentford Company would but for the transfer have been entitled shall be liable to account for and deliver up the same to the Gas Light Company or to such persons as the Gas Light Company may appoint to receive the same and subject to the same consequences on refusal or neglect as if such officers and persons had been appointed by and become possessed of such books documents papers moneys and effects for the Gas Light Company.

Compensa-
 tion to
 directors
 and auditors
 of Brentford
 Company.

29.—(1) The directors of the Brentford Company holding office at the date of transfer shall retire from office as from that date (except that the said directors shall continue to act as directors of the Brentford Company without remuneration or fees so long as that company shall continue incorporated pursuant to the section of this Act of which the marginal note is “Brentford Company to continue incorporated for specified purpose”) and the Gas Light Company shall within one month after the date of transfer pay to each of the said directors as compensation for loss of office a sum of money equivalent to seven years’ purchase of the annual amount of the remuneration (with the income tax thereon) of such director as a director of the Brentford Company according to the rate of remuneration of such director in force on the twenty-fifth day of July one thousand nine hundred and twenty-four.

(2) Each of the auditors of the Brentford Company holding office at the date of transfer shall retire from office as from that date (except that such auditors shall continue to hold their respective offices without remuneration for the purpose of auditing the accounts of that company in accordance with the provisions of the section of this Act of which the marginal note is “Separate accounts of Brentford Company to be audited for

“ year to 31st December 1925 ”) and as compensation for loss of office shall be paid by the Gas Light Company within one month after the date of transfer a sum equal to three years' remuneration (with the income tax thereon) of his office as such auditor according to the rate of remuneration of such auditor in force on the twenty-fifth day of July one thousand nine hundred and twenty-four. A.D. 1925.

30.—(1) The Gas Light Company shall subject as is hereinafter provided take over and employ as on and from the date of transfer and on the terms of their existing contracts such of the staff officers of the Brentford Company as the Gas Light Company may elect to take over and employ and as shall be willing to enter the service of the Gas Light Company. As to officers of Brentford Company.

(2) The officers so taken over shall subject as hereinafter provided become subject to the same obligations as are imposed upon the officers of the Gas Light Company to join the superannuation fund and guarantee fund of that Company and shall be eligible for appointment as co-partners of that Company on the like terms and conditions as officers of the Gas Light Company are so eligible:

Provided that except as respects the obligation to join the said guarantee fund the provisions of this subsection shall not apply to any such officer as aforesaid with whom the Gas Light Company may have agreed before the date of transfer that such provisions shall not apply to him.

(3) If the Gas Light Company elect not to take over any staff officer of the Brentford Company who shall be willing to enter their service the Gas Light Company shall pay to such officer by way of compensation for loss of office and in full discharge of all rights of or obligations to such officer (including any rights or obligations under any superannuation or pension or benevolent scheme of the Brentford Company or otherwise) such an amount as may be agreed between the Gas Light Company and such officer or as failing such agreement may be determined by an arbitrator to be agreed upon or in default of agreement appointed on the application of the Gas Light Company or of such officer by the President of the Institute of Chartered Accountants and subject as aforesaid the provisions of the Arbitration Act 1889 shall

A.D. 1925. — apply to such determination All compensation payable by the Gas Light Company under the provisions of this subsection shall be paid forthwith after the date on which the amount thereof shall have been agreed or determined.

(4) For the purposes of this Act the amounts of the salaries of the staff officers of the Brentford Company shall be deemed to be the amounts to which they were respectively entitled by way of salary on the twenty-fifth day of July one thousand nine hundred and twenty-four with the addition of any automatic increase to which on or before the date of transfer any of such officers may have become entitled by the terms of his engagement or of any increase which on or before the date of transfer would in the ordinary course have been accorded to him.

Payments to
staff officers
of Brentford
Company
not taken
over by
Gas Light
Company.

31. As from the date of transfer the Gas Light Company shall pay to each staff officer of the Brentford Company who shall decline to enter the service of the Gas Light Company any sum or periodical allowance or payment which he would be entitled on retiring voluntarily from the service of the Brentford Company on the date of transfer to receive under any superannuation or pension or benevolent scheme of that company out of the fund formed under any such scheme.

Gas Light
Company to
continue to
pay pen-
sions &c.

32. As from the date of transfer the Gas Light Company shall continue to pay all superannuation allowances pensions or other periodical sums granted or payable by the Brentford Company under any superannuation pension benevolent or other similar scheme or otherwise which but for the passing of this Act would have continued to be payable by the Brentford Company after the date of transfer and to perform all the obligations of the Brentford Company to every person who at the date of transfer shall have become entitled to any such allowance pension or sum as though the Gas Light Company were the Brentford Company and in the case of any staff officer of the Brentford Company who shall enter the service of the Gas Light Company and join the superannuation fund of that Company the Gas Light Company shall in calculating the period of his service for the purpose of any superannuation allowance of such officer upon his retirement from the service of the Gas Light Company take into account the continuous staff service of such officer with the Brentford Company as if it had been service with the Gas Light Company.

33. The Gas Light Company shall on or before the first day of March one thousand nine hundred and twenty-six pay to the persons who immediately before the date of transfer held ordinary or preference stock of the Brentford Company dividends (less income tax) on those stocks respectively for the half year ending on the thirty-first day of December one thousand nine hundred and twenty-five at the respective rates at which (regard being had to the divisible profits and reserve fund of the Brentford Company) such dividends could have been paid if the transfer had not taken place :

A.D. 1925.

—
 As to dividends on ordinary and preference stocks of Brentford Company to 31st December 1925.

Provided that the rates of dividend so to be paid shall not exceed the rates of the dividends paid by the Brentford Company on the said stocks respectively for the half year ended on the thirty-first day of December one thousand nine hundred and twenty-three.

34.—(1) The several persons who immediately before the date of transfer appeared on the registers of the Brentford Company to be holders of ordinary stock or five per centum preference stock or four per centum debenture stock or six per centum redeemable debenture stock or mortgage bonds of the Brentford Company or the respective executors or administrators of such persons shall for the purposes of this Act and subject to the provisions of the section of this Act of which the marginal note is "Certificates &c. to remain in force" be deemed to be holders of ordinary stock or preference stock or debenture stock or mortgage bonds of the Brentford Company and the secretary of that company shall forthwith after the date of transfer deliver to the Gas Light Company at the principal office of that Company the said registers and as on and from the date of transfer the registers of transfers of ordinary stock or preference stock or debenture stock or mortgage bonds of the Brentford Company shall be permanently closed and no transfer of any ordinary stock or preference stock or debenture stock or mortgage bonds of the Brentford Company made on or after the date of transfer shall as between the Gas Light Company and the party claiming thereunder be of any effect.

Brentford Company's books to be evidence as to holders of stocks and mortgages.

(2) The issue by the Gas Light Company pursuant to the provisions of this Part of this Act of certificates of ordinary stock or four per centum consolidated preference stock or three per centum consolidated debenture stock

A.D. 1925. — or six per centum Brentford redeemable debenture stock (as the case may be) of the Gas Light Company (together with the payment of the sums of cash payable pursuant to the foregoing provisions of this Act) to the persons whose names appear by the said registers to be registered holders of ordinary stock or five per centum preference stock or four per centum debenture stock or six per centum redeemable debenture stock of the Brentford Company or the respective executors or administrators of such persons or to the persons entitled thereto pursuant to the section of this Act of which the marginal note is "Certificates &c. to remain in force" shall be a sufficient discharge to the Gas Light Company for all purposes.

Transfer of
certain
funds of
Brentford
Company.

35. As from the date of transfer—

- (a) the reserve fund and the special purposes fund of the Brentford Company shall be added to and form part of the special purposes fund of the Gas Light Company; and
- (b) all funds formed for the purposes of any superannuation or pension or benevolent or other similar scheme of the Brentford Company shall be added to and form part of the officers' superannuation fund of the Gas Light Company and shall be by virtue of this Act vested in the trustees of such last-mentioned fund.

Brentford
Company to
carry on
Brentford
undertaking
until date of
transfer.

36. As from the passing of this Act and until the date of transfer the Brentford Company may and shall to the best of their ability and with due diligence maintain and carry on their undertaking and for that purpose may exercise all or any of the rights powers privileges and liberties and shall discharge all the duties obligations and liabilities under the Acts and Orders relating to that undertaking to the same extent as if this Act had not been passed but so that the Brentford Company and the Gas Light Company respectively shall comply with the obligations in relation to the carrying on of the said undertaking contained in any agreement between the Brentford Company and the Gas Light Company for or relating to the transfer of the Brentford undertaking.

Differential
price in
Brentford
district.

37.—(1) As from the respective dates of the reading of the indices for the December quarter of the year one thousand nine hundred and twenty-five of the meters

measuring the gas supplied to the owners or occupiers of premises in the Brentford district who consume such gas by meter (in this section referred to as "the Brentford consumers") the price to be charged for gas supplied to the Brentford consumers shall be a price per therm exceeding by the following respective amounts the price for the time being charged by the Gas Light Company for gas supplied to private consumers in that part of the Gas Light district which is north of the River Thames (in this section referred to as "the Gas Light consumers") (that is to say):—

For the period commencing with the March quarter and ending with the Christmas quarter (both inclusive) of any year mentioned in the first column of the following table the amount mentioned opposite that year in the second column of that table:—

Year.	Amount.
1926 - - -	One and two-fifths pence in so much of the Brentford district as comprises the Richmond district defined and referred to in the Brentford Gas Order 1924 and one penny in the remainder of the Brentford district.
1927 - - -	One penny throughout the Brentford district.
1928 and 1929 -	Four-fifths of a penny throughout the Brentford district.
1930 and 1931 -	Three-fifths of a penny throughout the Brentford district.
1932 and 1933 -	Two-fifths of a penny throughout the Brentford district.

(2) As from the respective dates of the reading of the said indices for the Christmas quarter of the said year one thousand nine hundred and thirty-three the price to be charged for gas supplied to the Brentford consumers shall be the same as the price for the time being charged by the Gas Light Company for gas supplied to the Gas Light consumers.

(3) During the period referred to in subsection (1) of this section the price for the time being charged by the Gas Light Company for gas supplied to the Brentford consumers shall not be taken into account for the purposes of section 34 (Reduction of standard price and amendment of enactments relating to sliding

A.D. 1925. — scale) of the Gas Light and Coke Company's Act 1909 as amended by the Gas Light and Coke Company (Charges) Order 1921 and by the Gas Light and Coke Company (Charges) Amending Order 1923 or any future Act or Order and the said section 34 as so amended shall have effect as if the price for the time being charged for gas supplied to the Gas Light consumers were the price for the time being charged by the Gas Light Company for gas supplied by them.

PART III.

STREET WORKS IN BATTERSEA.

Power to
construct
new street.

38. Subject to the provisions of this Act the Gas Light Company may in the line or situation shown on the deposited plans and according to the levels shown on the deposited section make and execute in the metropolitan borough of Battersea in the county of London the following work (that is to say):—

A new street commencing by a junction with Nine Elms Lane and terminating by a junction with Cringle Street :

Provided that the said new street shall be made of a width not less than forty feet throughout.

Deviation
from lines
and levels.

39. In constructing the new street the Gas Light Company may deviate laterally to any extent from the line or situation thereof within the limits of deviation defined on the deposited plans and vertically to any extent not exceeding three feet from the levels thereof defined on the deposited section.

Subsidiary
works.

40. Subject to the provisions of this Act and within the limits of deviation shown on the deposited plans the Gas Light Company may in connection with the new street and for the purposes thereof make junctions and communications with any existing streets which may be intersected or interfered with by or be contiguous to the new street and may make diversions widenings or alterations of the lines or levels of any existing streets for the purpose of connecting the same with the new street or otherwise and may alter and remove any drinking troughs lamp posts railings refuges or other structures erected upon any street or land

within the said limits and may alter divert or stop up all or any part of any drain sewer channel or gas or water main or pipe cable wire or apparatus within the said limits providing a proper substitute before interrupting the flow of sewage in any drain or sewer or of gas or water in any main or pipe or of electricity or telegraphic or telephonic communication in any wire or apparatus and making compensation for any damage done by them in the execution of the powers of this section : A.D. 1925.

Provided that the Gas Light Company shall not alter divert or otherwise interfere with any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General except under and subject to the provisions of the said Act.

41. Within the limits of deviation shown on the deposited plans the Gas Light Company may raise sink or otherwise alter the position of any of the steps areas cellars windows and pipes or spouts belonging to any house or building and also the drains and the pipes or wires for the purpose of conveying water gas or electricity to any house or other place and may remove all other obstructions so that the same be done with as little delay and inconvenience to the inhabitants as the circumstances of the case will admit and the Gas Light Company shall make compensation for any damage done by them in the execution of the powers of this section. Power to alter steps areas &c.

42.—(1) The Gas Light Company during and for the purpose of the construction of the new street may break up and also temporarily stop up divert and interfere with any street or the carriageway or footways thereof and may for any reasonable time prevent all persons other than those bonâ fide going to or from any house in the street from passing along and using the same. Temporary stoppage of streets.

(2) The Gas Light Company shall provide reasonable access for foot passengers bonâ fide going to or from any such house.

43. The Gas Light Company may cause such part of the new street to be laid out for carriageway and such part thereof for footway or footways as they may determine with the approval of the Battersea Council Provided that unless within one month after the sub- As to laying out of new street.

[Ch. xxxv.] *Gas Light and Coke* [15 & 16 GEO. 5.]
Company's Act, 1925.

A.D. 1925. mission to them of the proposals of the Gas Light Company with reference to such carriageway and footway or footways the Battersea Council intimate to the Gas Light Company in writing their disapproval thereof they shall be deemed to have approved of the said proposals.

Period for completion of new street.

44. If the new street is not completed within five years from the passing of this Act then on the expiration of that period the powers of the Gas Light Company under this Act for the construction of the new street shall cease except so far as the same shall have been completed.

Stopping up of part of Nine Elms Lane.

45.—(1) Subject as hereinafter provided the Gas Light Company may stop up—

- (a) so much of Nine Elms Lane in the metropolitan borough of Battersea as lies between points respectively ninety-six yards or thereabouts and one hundred and eighty-six yards or thereabouts measured in an easterly and south-easterly direction along the centre of the said lane from the eastern side of Kirtling Street; or
- (b) from time to time any part or parts of the said portion of the said lane;

but no part of the said lane shall be so stopped up until the new street is completed to the satisfaction of the Battersea Council and is open for public use or in case of difference between the Gas Light Company and the Battersea Council until a metropolitan police magistrate shall have certified that the new street has been completed to his satisfaction and is open for public use nor unless the Gas Light Company are for the time being owners in possession of the lands bounding the same on both sides except so far as the owners lessees and occupiers of those lands otherwise agree.

(2) Before applying to a metropolitan police magistrate for his certificate the Gas Light Company shall give to the Battersea Council seven days' notice in writing of their intention to apply for the same.

(3) As from the completion of the new street to the satisfaction of the Battersea Council or as from the date of the said certificate (as the case may be) all rights of way over or along the existing portion of the said lane or so much thereof as shall for the time being be

stopped up under the powers of this section shall be extinguished and the Gas Light Company may appropriate and use for the purposes of their undertaking the site and soil of the said existing portion so far as the same is bounded on both sides by lands of the Gas Light Company. Provided that the Gas Light Company shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

A.D. 1925.
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(4) Notwithstanding the stopping up of the said portion of the said lane or any part thereof the Postmaster-General may if he so desires (without derogation from any other right vested in him) remove from the said portion of the said lane or any part thereof any telegraphic line of the Postmaster-General which is in under upon over along or across the same and the Gas Light Company shall pay to the Postmaster-General the expenses incurred by him of and incidental to the removal of such telegraphic line and of any telegraphic line connected therewith which in consequence will be rendered useless and the substitution of a telegraphic line in such other place as the Postmaster-General may require. The expression "telegraphic line" in this section has the same meaning as in the Telegraph Act 1878.

46. Upon the completion of the new street to the satisfaction of the Battersea Council or upon the granting of any such certificate of a metropolitan police magistrate as is referred to in the section of this Act of which the marginal note is "Stopping up of part of Nine Elms Lane" the Battersea Council shall issue a certificate under their seal of the completion of the new street and any copy of such certificate certified under the hand of the town clerk of the metropolitan borough of Battersea shall in all proceedings and for all purposes be admissible and received as evidence that such certificate has been duly made and from the date of the certificate of the Battersea Council the new street shall be a public highway and may be used by the public accordingly and shall be maintained repaired cleansed and lighted by and at the expense of the Battersea Council.

New street
 to be public
 highway.

A.D. 1925.

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Vesting of
materials in
Gas Light
Company.

47. All materials obtained by the Gas Light Company in the alteration of or interference with any sewer drain gas or water main or pipe cable wire or apparatus shall be the property of and may be disposed of by the Gas Light Company.

As to deter-
mination of
compensa-
tion for
damage.

48. In any case in which compensation is payable under the provisions of this Part of this Act and no other provision is made for the determination of the amount thereof such amount shall failing agreement be determined by a single arbitrator to be agreed upon between the Gas Light Company and the party claiming compensation or in default of such agreement to be appointed on the application of either party (after notice in writing to the other of them) by the President of the Surveyors Institution and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply.

For protec-
tion of
Metropoli-
tan Water
Board.

49. For the protection of the Metropolitan Water Board (in this section referred to as "the board") the following provisions shall have effect unless otherwise agreed in writing between the Gas Light Company and the board (that is to say):—

(1) Wherever by reason or in consequence of the permanent stopping up of any street or road or part of any street or road any mains pipes valves hydrants syphons plugs or other works (hereinafter in this section referred to as "apparatus") of the board shall be rendered derelict or unnecessary the Gas Light Company shall forthwith after such stopping up pay to the board such a sum as may be agreed between the board and the Gas Light Company or as failing such agreement may be determined by arbitration as hereinafter provided to be the value of—

(a) any apparatus of the board situate in and under the said street or road or any part or parts thereof so stopped up; and

(b) any apparatus of the board connected with the property of the board and used exclusively for the purposes of the supply of water to any premises to which a supply is furnished by means of the said apparatus;

- (2) In addition to the payment referred to in the last preceding subsection of this section the Gas Light Company shall pay to the board their reasonable charges of and incidental to the cutting off of any such apparatus as is referred to in the said subsection from any other apparatus of the board and of and incidental to any other works and things rendered necessary or expedient in consequence of any apparatus of the board being rendered derelict or unnecessary by the stopping up or otherwise : A.D. 1925.
- (3) Notwithstanding the stopping up temporarily of any road or street the board their engineers workmen and others in their employ shall at all times have all such rights of access to all or any of the apparatus of the board situate in or under any such road or street as they had immediately before the passing of this Act and shall be at liberty to do all such works in and upon such road or street as may be necessary for inspecting repairing maintaining removing or extending such apparatus :
- (4) If any difference shall arise under this section between the Gas Light Company and the board the same shall be referred to an arbitrator to be agreed upon or failing such agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and the Arbitration Act 1889 shall apply to any such reference.

PART IV.

STOPPING UP FOOTPATHS.

50. The Gas Light Company may stop up the following parts of footpaths and road (that is to say) :— Power to stop up footpaths.

- (a) So much of the footpath in the metropolitan borough of Woolwich in the county of London extending from the Woolwich Manor Way to the Northern Outfall Works (London main drainage system) of the London County Council

A.D. 1925.
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as is situate on the property of the Gas Light Company between the points at which that property abuts on the south upon the property of the Port of London Authority eleven chains or thereabouts northward of Gallions Station and on the north-east upon the said Northern Outfall Works sixteen chains or thereabouts westward of the channel from those works into the River Thames;

(b) So much of the footpath in the urban district of Brentford in the county of Middlesex extending from High Street Brentford to Netley Road East as is situate between High Street and a point in the said footpath opposite the south-easternmost corner of the premises known as No. 1 North Road; and

(c) So much of the road or footpath in the urban district of Harrow-on-the-Hill in the said county of Middlesex extending from Stanley Road through Gasworks Lane to Northolt Road as is situate between the stile erected at a point three chains or thereabouts north-eastward of the junction of the said road or footpath with Stanley Road and a point in Gasworks Lane three chains or thereabouts westward of the junction thereof with Northolt Road;

and thereupon all rights of way over the said portions of footpaths and road respectively shall be extinguished Provided that the Gas Light Company shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement:

Provided also that the Gas Light Company shall not stop up the portions of footpaths and road (b) and (c) hereinbefore described or either of them until the Brentford undertaking is vested in them under the provisions of this Act.

For pro-
tection of
London
County
Council,

51. For the protection of the London County Council (in this section referred to as "the council") the following provisions shall unless otherwise agreed

in writing between the Gas Light Company and the council have effect (that is to say) :— A.D. 1925.

- (1) Notwithstanding the stopping up of the portion of footpath (a) described in the section of this Act of which the marginal note is "Power to stop up footpaths" the Gas Light Company shall at all times permit all persons from time to time duly authorised in that behalf by the council and producing (if and whenever called upon by the Gas Light Company so to do) sufficient evidence of such authority to pass and repass on foot across the property of the Gas Light Company between the points between which the said footpath is stopped up :
- (2) The said right of passage and repassage shall be exerciseable only along the line of such path as may from time to time be laid out for the purpose by the Gas Light Company and unless and until the Gas Light Company otherwise determine shall be exerciseable along the line of the existing footpath. Provided that the Gas Light Company shall not alter the line of the existing footpath so as to make substantially less convenient the means of passage and repassage between the said points or to interfere with reasonable access by the council to their sewers laid under the site of the existing footpath :
- (3) The exercise of the rights of passage and repassage referred to in this section shall not be deemed to create or give rise to a right of way along any particular line or path :
- (4) The Gas Light Company shall not except in the case of any negligence on their part or on the part of their officers or servants be responsible for any injury which may be sustained by any person while passing or repassing along or remaining on their property or be liable to any claim demand proceedings costs damages or expenses in respect of any such injury :
- (5) If any question shall arise between the council and the Gas Light Company under the proviso to subsection (2) of this section such question

A.D. 1925.
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shall be referred to and determined by an arbitrator to be agreed upon between them or failing such agreement to be appointed on the application of either party (after notice in writing to the other of them) by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference.

For protec-
tion of
Harrow-on-
the-Hill
Urban
District
Council.

52. Notwithstanding anything in this Act contained or shown upon the deposited plans and section the following provisions for the protection of the urban district council of Harrow-on-the-Hill (in this section referred to as "the council") shall unless otherwise agreed between the Gas Light Company and the council apply and have effect (that is to say):—

- (1) As from the date of the stopping up by the Gas Light Company under the powers of the section of this Act of which the marginal note is "Power to stop up footpaths" of the portion of the road or footpath extending from Stanley Road through Gasworks Lane to Northholt Road described in paragraph (c) of the said section the rights and obligations of the council and the Gas Light Company respectively in relation to the surface water sewer of the council at present laid under the said portion of road or footpath shall be and continue to be the same as if immediately before the passing of this Act the said sewer had been laid under the powers of section 16 of the Public Health Act 1875 under the lands abutting on the said portion of road or footpath:
- (2) The Gas Light Company shall take all reasonable precautions for preventing so far as possible any injury to the said sewer and in the event of any injury being caused to the said sewer by any act or default of the Gas Light Company or their officers or servants shall forthwith at their own expense make good such injury to the reasonable satisfaction of the council:
- (3) Any dispute or difference which may arise between the council and the Gas Light Company under the provisions of this section shall be

referred to and determined by an engineer to be appointed (failing agreement between the parties) by the President of the Institution of Civil Engineers on the application of either party after notice in writing to the other of them and subject as aforesaid the Arbitration Act 1889 shall apply to any such determination.

A.D. 1925.

PART V.

LANDS.

53. Subject to the provisions of this Act the Gas Light Company may enter upon take and use all or any of the lands delineated on the deposited plans and described in the deposited book of reference which they may require for the purposes of the new street.

Power to acquire lands for purposes of new street.

54. Subject to the provisions of this Act the Gas Light Company may enter upon take and use and may hold for any of the purposes of their undertaking the following lands in the city of Westminster which are delineated on the deposited plans and described in the deposited book of reference (that is to say) :—

Power to acquire additional lands.

Lands in the occupation of the Gas Light Company abutting on the eastern side of Monck Street extending on the western side of such lands between points respectively sixty-two feet ten inches and two hundred and sixty-one feet two inches measured along Monck Street in a southerly direction from the southern side of Great Peter Street and measuring on the northern side eighty-six feet nine inches on the eastern side one hundred and ninety-eight feet nine inches and on the southern side eighty-one feet six inches.

55. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Gas Light Company after giving ten days' notice to the owners lessees and occupiers of the land in question may apply to a metropolitan police magistrate or to two justices acting for the county of Middlesex (as the case may require) for the correction thereof and if it appear to such magistrate or justices (as the case may

Correction of errors in deposited plans and book of reference.

A.D. 1925. be) that the omission misstatement or wrong description arose from mistake he or they shall certify the same accordingly and shall in his or their certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the clerk of the peace for the county of London or with the clerk of the peace for the county of Middlesex (as the case may require) and a duplicate thereof shall also be deposited with the clerk of the council of the metropolitan borough or urban district in which such lands are situate and such certificate and duplicate respectively shall be kept by such clerks respectively with the other documents to which the same relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Gas Light Company to take the lands and execute the works in accordance with such certificate.

Persons
under
disability
may grant
easements
&c.

56. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Gas Light Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Limit of
time for
compulsory
purchase of
lands.

57. The powers of the Gas Light Company for the compulsory purchase or user of lands under the provisions of this Act shall cease on the thirty-first day of December one thousand nine hundred and twenty-eight.

Additional
lands for
manufac-
ture &c. of
gas and
residual
products.

58. In addition to any other powers exerciseable by the Gas Light Company under or by virtue of this Act (including the enactments and schedules referred to in the First Schedule to this Act which are not repealed by this Act) the Gas Light Company may upon and with reference to the lands described in the Second Schedule to this Act exercise all such powers as are

exercisable by them under the provisions of the Gas Light and Coke Company's Act 1868 or of the Gas Light and Coke Company's Act 1876 upon or with reference to the lands described in the schedule to the first mentioned Act and in Schedule A to the secondly mentioned Act or any of those lands Provided that as respects such of the lands described in the said Second Schedule to this Act as are not vested in the Gas Light Company at the date of the passing of this Act the said powers shall not be exercisable by that Company until those lands become by virtue of this Act vested in them Provided also that the exercise of the said powers shall be subject to such provisions in favour of the Port of London Authority or its predecessors as are contained in the said Acts of 1868 and 1876 :

A.D. 1925.

—

Provided further that as respects such of the lands described in the said Second Schedule to this Act as are in the urban district of Brentford and are coloured blue on the plan signed by Major Malone the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred (of which plan copies have been deposited in the Private Bill Office of the House of Commons and in the Parliament Office of the House of Lords and with the Gas Light Company and with the Metropolitan Water Board) the provisions of this section shall not have effect until the expiration of ten years from the date of the passing of this Act and that as from the date of transfer and until the expiration of the said period of ten years the Gas Light Company shall have and be entitled to exercise with reference to those lands the like rights (and no other) as the Brentford Company would have had and been entitled to exercise if this Act had not been passed.

PART VI.

CONVERSION OF TEN PER CENTUM BONDS.

59. On and from the first day of January one thousand nine hundred and twenty-six (which date is in this Part of this Act referred to as "the date of conversion") the ten per centum bonds of the Gas Light Company amounting to one hundred and thirty thousand pounds shall be by virtue of this Act converted into three per centum consolidated debenture stock of

Conversion
of ten per
centum
bonds of
Gas Light
Company.

[Ch. xxxv.] *Gas Light and Coke* [15 & 16 GEO. 5.]
Company's Act, 1925.

A.D. 1925. — that Company to the amount of four hundred and thirty-three thousand three hundred and thirty-three pounds six shillings and eightpence or such less amount of the said debenture stock as shall be requisite for the purposes of this Part of this Act.

Creation of consolidated debenture stock for purposes of this Part of Act. **60.**—(1) On the date of conversion there shall be by virtue of this Act and without any other requisite created such an amount of three per centum consolidated debenture stock of the Gas Light Company as shall be necessary for giving effect to the provisions of this Part of this Act.

(2) The debenture stock created under the provisions of this section shall in all respects and for all purposes be deemed to form part of and be consolidated with the three per centum consolidated debenture stock of the Gas Light Company existing at the date of conversion and the interest thereon shall rank *pari passu* with the interest on the said existing debenture stock.

Issue of debenture stock to holders of ten per centum bonds. **61.**—(1) The three per centum consolidated debenture stock created under the provisions of this Part of this Act shall subject to the provisions of this Part of this Act be divided among and shall as from the date of conversion be vested without payment in the persons who immediately before that date were registered as the holders of the ten per centum bonds of the Gas Light Company in the proportion of three hundred and thirty-three pounds six shillings and eightpence of such debenture stock for each one hundred pounds of such bonds and as soon as practicable after the date of conversion shall (subject to the provisions of the section of this Act of which the marginal note is "As to fractional parts of five pounds of debenture stock issued under this Part of Act") be registered in the books of the Gas Light Company in the respective names of the persons entitled thereto.

(2) The three per centum consolidated debenture stock to be so vested and registered as aforesaid shall bear interest as from the thirty-first day of December one thousand nine hundred and twenty-five and as from that date the said ten per centum bonds shall cease to bear any interest.

As to fractional parts of five **62.** In every case where under the provisions of this Part of this Act a holder of ten per centum bonds

of the Gas Light Company would be entitled to be registered as the holder of any amount of three per centum consolidated debenture stock including a fractional part of five pounds the Gas Light Company in lieu of registering such holder and issuing to him a certificate as holder of an amount of three per centum consolidated debenture stock including such fractional part shall pay to such holder such a sum in cash as shall be equal to the value of such fractional part at the mean market price on the date of conversion and shall register such holder and issue to him a certificate as holder of the amount of three per centum consolidated debenture stock to which he shall be entitled as aforesaid excluding such fractional part and the receipt of such holder for the sum in cash so paid as aforesaid shall be a sufficient discharge to the Gas Light Company in respect of such fractional part. The Gas Light Company may either cancel all or any of the three per centum consolidated debenture stock in respect of which such payment has been made or issue the same to any willing purchaser thereof in amounts of five pounds or multiples thereof but not otherwise and any loss or expense which may be incurred in connection with such issue shall be borne by the Gas Light Company.

A.D. 1925.
 —
 pounds of
 debenture
 stock issued
 under this
 Part of Act.

63. The Gas Light Company shall call in the ten per centum bonds and shall issue free of charge in exchange therefor to the respective holders of such bonds certificates for three per centum consolidated debenture stock of the Gas Light Company of the respective amounts and pay to such holders the sums of cash (if any) to which those holders are by this Part of this Act respectively entitled but no holder of a ten per centum bond shall be entitled to a certificate for debenture stock or to receive any such sum of cash as aforesaid until he shall have delivered up to the Gas Light Company to be cancelled the bond or bonds for which such certificate and sum of cash (if any) are to be substituted or shall have proved to the reasonable satisfaction of the directors of the Gas Light Company the loss or destruction of such bond or bonds and shall have given to the Gas Light Company an indemnity against any and every claim in respect of such lost or destroyed bond or bonds. Provided that until the issue of certificates for such debenture stock the holders of

Exchange of
 certificates
 for debenture stock
 for ten
 per centum
 bonds.

A.D. 1925. the ten per centum bonds shall (according to the amounts of three per centum consolidated debenture stock which such bonds respectively represent) have and possess the same rights and privileges as if such bonds were certificates for those respective amounts of such debenture stock but if any such holder neglect or omit to send or deliver to the Gas Light Company his bond or bonds for the period of one year after notice in writing sent by post to the address of such holder appearing in the books of the Gas Light Company the Gas Light Company may suspend the payment of any interest becoming payable upon or in respect of the debenture stock to be issued to him as aforesaid until such bond or bonds is or are delivered up to the Gas Light Company or is or are proved to the reasonable satisfaction of the directors of that Company to have been lost or destroyed and until such indemnity as aforesaid shall have been given.

Trustees to
accept
debenture
stock issued
under this
Part of Act.

64. The three per centum consolidated debenture stock of the Gas Light Company of which the holders of ten per centum bonds of that Company are pursuant to the provisions of this Part of this Act respectively registered as the holders and the sums of cash to be paid by the Gas Light Company under this Part of this Act in respect of the fractional parts of five pounds as aforesaid shall be held in the same rights upon the same trusts and subject (so far as is consistent with such provisions) to the same powers provisions charges and liabilities as those in, upon or to which the ten per centum bonds were held or were subject immediately before the date of conversion and shall be dealt with applied or disposed of accordingly and so as to give effect to and not to revoke any deed will or other instrument disposing of or affecting any such ten per centum bonds and not to adeem any gift of such bonds made by any will or other testamentary instrument and trustees executors or administrators and all other holders in any representative or fiduciary capacity of any of the said bonds are hereby expressly authorised and required to accept any three per centum consolidated debenture stock of which they are pursuant to the provisions of this Part of this Act registered as the holders and any sums of cash paid to them under the provisions of this Part of this Act and to hold dispose of or otherwise deal with such debenture stock and sums

of cash in all respects as they might have held disposed of or otherwise dealt with the ten per centum bonds for which the same are substituted and are hereby excused from liability in respect of all acts bonâ fide done by them in pursuance of the provisions of this Part of this Act. A.D. 1925.

65. All transfers or other dispositions of any ten per centum bonds of the Gas Light Company made but not registered before the date of conversion shall notwithstanding the provisions of this Part of this Act be valid and have due effect given to them respectively as transfers or dispositions of (as the case may be):—

As to transfers of ten per centum bonds made but not registered.

(a) the amounts (being in each case a multiple of five pounds) of three per centum consolidated debenture stock of the Gas Light Company which represent the bonds thereby expressed to be transferred or disposed of and which are substituted for the same by this Part of this Act; or

(b) (i) three per centum consolidated debenture stock of the Gas Light Company to the amount of the multiple of five pounds next below the amount of such debenture stock which but for the provisions of the section of this Act of which the marginal note is "As to fractional parts of five pounds of debenture stock issued under this Part of Act" would have represented the bonds transferred or disposed of by such transfer or disposition as aforesaid; and

(ii) a sum in cash equal to the value of any fractional part of five pounds of such debenture stock at the mean market price on the date of conversion

although the instrument of transfer or disposition shall describe the same as ten per centum bonds and the Gas Light Company shall accordingly register the debenture stock in the name of the transferee or person taking under the disposition and pay to such transferee or person the sum (if any) payable in cash and any bequest of or any covenant in or provision of any deed or instrument which but for the passing of this Act would apply to the ten per centum bonds so transferred or disposed of as aforesaid shall be held to apply to

A.D. 1925. — an amount of three per centum consolidated debenture stock of the Gas Light Company equal to that which is under the provisions of this Part of this Act substituted for such bonds together with any sum of cash payable under the provisions of this Part of this Act in respect of any fractional part of five pounds of debenture stock.

PART VII.

MISCELLANEOUS.

New stock
to be sold by
auction or
tender.

66.—(1) All ordinary stock and preference stock of the Gas Light Company created under the powers of this Act other than any such stock as is referred to in the sections of this Act of which the marginal notes are respectively “Creation of ordinary and preference stock and debenture stock of Gas Light Company for purposes of transfer” and “As to fractional parts of five pounds of stock to be issued to holders of stock of Brentford Company” shall be issued in accordance with the provisions of this section.

(2) All stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Gas Light Company shall from time to time determine Provided as follows:—

(a) Notice of the intended sale shall be given in writing to the clerk of the London County Council and to the secretary of the London Stock Exchange at least fourteen days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in a newspaper circulating within the county of London;

(b) A reserve price shall be fixed and notice thereof shall be sent by the Gas Light Company in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened until after the day of auction or last day for the receipt of tenders as the case may be;

(c) No lot offered for sale shall comprise stock of greater nominal value than one hundred pounds; A.D. 1925.
—

(d) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum. In the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid;

(e) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Gas Light Company within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any stock which has been so offered for sale and is not sold may be offered at the reserve price to the holders of ordinary and preference shares or stock of the Gas Light Company in accordance with the provisions of sections 18 19 and 20 of the Companies Clauses Act 1863 and to the employees of the Gas Light Company and to the consumers of gas supplied by the Gas Light Company in such proportions as the Gas Light Company may think fit or to one or more of these classes of persons only. Provided in the case of an offer to holders of stock that if the aggregate amount of stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them.

(4) Any stock which has been offered for sale in accordance with subsection (2) or with subsections (2) and (3) of this section and is not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Gas Light Company shall send a report thereof to the Board of Trade stating the total amount of the stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the stock.

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A.D. 1925.

(6) The following provisions of the Gas Light and Coke Company's Act 1876 are hereby repealed (that is to say):—

Section 13 (New shares to be offered by auction or tender);

Section 14 (As to notice to be given as to sale &c. of shares);

Section 15 (Shares not sold by auction or by tender to be offered to shareholders).

As to remuneration of directors and auditors of Gas Light Company.

67.—(1) As from the passing of this Act section 42 (As to remuneration of directors) of the Gas Light and Coke Company's Order 1922 shall be read and have effect as if the sum of twelve thousand five hundred pounds had been mentioned therein instead of the sum of ten thousand pounds.

(2) As from the passing of this Act section 42 (As to remuneration of auditors of Gas Light Company) of the Gas Light and Coke Company's Act 1911 shall be read and have effect as if the sum of eight hundred pounds had been mentioned therein instead of the sum of six hundred pounds.

Debenture stock, &c. authorised by Acts of 1903 and 1918 to rank *pari passu* with three per centum debenture stock.

68. Notwithstanding anything contained in section 7 (Second debenture stock to rank next after existing three per centum consolidated debenture stock) of the Gas Light and Coke Company's Act 1903 or in the Gas Light and Coke Company's Act 1918 the debenture stock referred to in the said section 7 and any redeemable debenture stock mortgages or debentures created and issued or granted under the powers of the said Gas Light and Coke Company's Act 1918 and the interest on such debenture stock mortgages and debentures shall rank *pari passu* with the three per centum consolidated debenture stock of the Gas Light Company existing at the date of such issue or granting and the interest on such last-mentioned debenture stock.

Application of funds.

69. The Gas Light Company may apply to the purposes of this Act to which capital is properly applicable any of the moneys which they are already or which by virtue of any Act to be passed during the present session of Parliament they may be authorised to raise and which

may not be required by them for the purposes for which A.D. 1925.
the same were authorised to be raised. —

70. Nothing in this Act shall be deemed to exempt the Gas Light Company or any buildings or structures erected or constructed by them under the powers of this Act from any of the provisions of the London Building Acts 1894 to 1923 Saving for London Building Acts. Provided that the Gas Light Company shall be entitled to the benefit of any exemption in favour of gas companies in the said London Building Acts contained.

71. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown. Crown rights.

72. All costs charges and expenses of and incidental to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Gas Light Company and may be defrayed wholly or partly out of revenue. Costs of Act.

[Ch. xxxv.] *Gas Light and Coke* [15 & 16 GEO. 5.]
Company's Act, 1925.

A.D. 1925.

The SCHEDULES referred to in the
foregoing Act.

THE FIRST SCHEDULE.

Acts and Orders
repealed.

Extent of repeal.

The Brentford Gas
Act 1858.

The whole Act except sections 62 (Furnaces to consume their own smoke) 64 (Mains under metropolis roads to be laid as directed by commissioners) 65 (Works connected with the roads to be under superintendence of general surveyor) 66 (Company to make good damage to the roads) 67 (Traffic not to be stopped during Company's works on the roads) 68 (Precautions to be taken by Company during works on the roads) and 69 (Payment by Company for damage to the roads) so much of section 71 (Restrictions on erecting gasworks) as ends with the words "described in the Schedule to this Act" section 72 (Power for Company to divert footway) 73 (Abandoned footway vested in Company) 74 (Saving rights of Metropolitan Board of Works &c.) 75 (Saving rights of the Conservators of the River Thames) and 76 (Company not to interfere with the bed of the River Thames) and the Schedule to the Act.

The Brentford Gas
Act 1868.

The whole Act except sections 25 (Power to vestries of Barnes and Mortlake to erect experimental meter for testing the gas) 26 (Power to vestry to test gas) 41 (Sections of Act of 1858 relating to roads and footpaths extended) and 42 (For the protection of water pipes) and the Schedules "A" and "B" to the Act.

The Brentford Gas
Order 1876.

The whole Order except sections 9 (Undertakers may erect and maintain gasworks on lands described in Schedule and may make and sell gas &c.) and 10 (Differences with railway and other companies) and the Schedule to the Order.

[15 & 16 GEO. 5.], *Gas Light and Coke Company's Act, 1925.* [Ch. xxxv.]

Acts and Orders repealed.	Extent of repeal.	A.D. 1925.
The Brentford Gas Order 1881.	The whole Order except sections 31 (Under-takers may construct and maintain gas-works on lands described in Schedule and may make and sell gas &c.) 32 (Sale of gas in bulk) and 33 (Differences with railway and other companies) and the Schedule to the Order.	
The Brentford Gas Act 1914.	The whole Act except sections 44 (Certain provisions of Acts and Orders of Staines and Sunbury Companies to continue) 59 (Company may lay connecting main in limits of supply of Uxbridge Gas Company) 60 (For protection of Metropolitan Water Board) 61 (For protection of Great Western Railway Company) 68 (Power to Company to stop up lane) 97 (For protection of Grand Junction Canal Company) and 101 (For protection of Port of London Authority) and so much of the Fourth Schedule to the Act as relates to any Act or Order of the Staines and Egham District Gas and Coke Company Limited or the Sunbury Gas Consumers Company Limited.	
The Brentford Gas Act 1919.	The whole Act except sections 5 (Power to sell and lease lands) and 7 (Powers as to construction and maintenance of gasworks &c.) and the Second Schedule to the Act.	
The Brentford Gas (Charges) Order 1921.	The whole Order.	
The Brentford Gas Order 1924.	The whole Order except subsection (2) of section 21 (Repeal of enactments of Harrow and Richmond Companies) subsection (1) of section 37 (Power to use lands for manufacture and storage of gas &c.) and section 38 (Power to purchase lands by agreement) and Part II. of the Second Schedule to the Order and the Third Schedule to the Order.	

A.D. 1925.

THE SECOND SCHEDULE.

ADDITIONAL LANDS ON WHICH THE GAS LIGHT COMPANY MAY MANUFACTURE GAS &C.

In the metropolitan borough of Battersea in the county of London :—

Lands comprising an area of 4·65 acres or thereabouts bounded on the north by the foreshore of the River Thames on the west in part by premises in Nine Elms Lane in the occupation of Messrs. T. and W. Farmiloe Limited and in part by an imaginary line drawn across Nine Elms Lane at a distance of 96 yards or thereabouts measured in an easterly direction along the centre of the said lane from the eastern side of Kirtling Street on the south in part by Nine Elms Lane and in part by Cringle Street on the south-east in part by Battersea Park Road and in part by Nine Elms Lane and on the east by a roadway and slipway in the occupation of the council of the metropolitan borough of Battersea (including in the said lands the portion of Nine Elms Lane to be stopped up under the powers of the foregoing Act but excluding from the said lands so much thereof as is used for the purposes of the new street described in and authorised by that Act).

In the urban district of Brentford in the county of Middlesex :—

- (a) Lands comprising an area of 4·50 acres or thereabouts bounded on the south in part by High Street Brentford and in part by the northern side of St. George's Church and premises appurtenant thereto on the west in part by the eastern side of the said church and premises in part by North Road and in part by the footpath at the rear of North Road on the north in part by the southern side of the premises known as No. 1 North Road and in part by certain reservoirs and property of the Metropolitan Water Board and on the east in part by the western side of the said church and premises in part by the said reservoirs and property of the Metropolitan Water Board and in part by the premises known as No. 400 High Street aforesaid and in the occupation of Messrs. Lockyer and Son (including in the said lands the site of the portion of footpath in the said urban district to be stopped up under the powers of the foregoing Act);

- (b) Lands comprising an area of 1·64 acres or thereabouts A.D. 1925.
bounded on the north by High Street Brentford on
the south by the foreshore of the River Thames on
the west by St. George's Vicarage and premises appur-
tenant thereto and on the east by lands belonging to
the Brentford Gas Company and used for the purposes
of the manufacture of gas and other purposes in
connection therewith;
- (c) Lands comprising an area of 0·44 acre or thereabouts
bounded on the north by High Street Brentford on
the south by the foreshore of the River Thames on
the west by the said lands belonging to the Brentford
Gas Company and on the east by a public passage
and steps leading to the River Thames from High
Street aforesaid on the western side of St. George's
Almshouses.

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